

An Act

ENROLLED SENATE
BILL NO. 1423

By: Daniels of the Senate

and

Lepak of the House

An Act relating to the Oklahoma Hospital Advisory Council; amending 63 O.S. 2021, Sections 1-270, 1-705, and 1-707, which relate to public health; eliminating the Oklahoma Hospital Advisory Council; conforming language; updating statutory language; and providing an effective date.

SUBJECT: Oklahoma Hospital Advisory Council

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 63 O.S. 2021, Section 1-270, is amended to read as follows:

Section 1-270. A. As funding permits, the State Department of Health shall foster and coordinate implementation of a plan for a statewide coordinated system of care for stroke, which shall include special focus and attention on evidence-based treatment for stroke. Such system shall include, but shall not be limited to:

1. Recommendations from ~~the Oklahoma Hospital Advisory Council~~ and medical experts in stroke care;

2. Collaboration and partnerships with relevant professional organizations and associations advocating for evidence-based treatment for stroke patients;

3. Measures to raise awareness and promote preventative medical care regarding risk factors for stroke;

4. Utilization of state-recognized stroke hospital classifications; and

5. Protocols for evidence-based pre-hospital and interfacility assessment, treatment, and transport of stroke patients by emergency medical responders and agencies licensed pursuant to the Oklahoma Emergency Response Systems Development Act.

B. The State ~~Board~~ Commissioner of Health may promulgate rules as necessary to implement the provisions of this section.

SECTION 2. AMENDATORY 63 O.S. 2021, Section 1-705, is amended to read as follows:

Section 1-705. A. ~~The State Board of Health, upon recommendation of the State Commissioner of Health and with the advice of the Oklahoma Hospital Advisory Council hereinafter provided for,~~ shall promulgate rules and standards for the construction and operation of hospitals, for which licenses are required by the terms of this article, to provide for the proper care of patients. The promulgation of rules shall be subject to and be governed by the provisions of the Administrative Procedures Act.

B. Every hospital shall be periodically inspected by an authorized representative of the Commissioner. Reports of such inspections shall be on forms prescribed by the Commissioner, who shall, after receipt of such reports, take such action as deemed necessary by the ~~Commission~~ Commissioner to have corrected any deficiencies or violations of the rules and standards of the ~~Board~~ Commissioner shown in such reports.

C. Hospitals licensed pursuant to the provisions of this article shall not be exempt from being inspected or licensed under laws relating to hotels, restaurants, lodging houses, ~~boarding houses~~ boardinghouses and places of refreshment.

D. 1. Every hospital that offers or provides inpatient psychiatric or chemical dependency treatment services to persons eighteen (18) years of age or younger shall offer, provide or otherwise make available community-based programs and services and may make such programs and services available directly, through

contract, or other appropriate means as determined by the State Department of Health.

2. For the purposes of this subsection, the term "community-based services" shall have the same meaning as such term is defined by Section 1-1-105 of Title 10A of the Oklahoma Statutes.

SECTION 3. AMENDATORY 63 O.S. 2021, Section 1-707, is amended to read as follows:

Section 1-707. A. The State Commissioner of Health, ~~with the advice of the Oklahoma Hospital Advisory Council,~~ shall promulgate rules and standards as the Commissioner deems to be in the public interest for hospitals, on the following:

1. Construction plans and location, including fees not to exceed Two Thousand Dollars (\$2,000.00) for submission or resubmission of architectural and building plans, and procedures to ensure the timely review of such plans by the State Department of Health. The assessed fee shall be used solely for the purposes of processing approval of construction plans and location by the State Department of Health;

2. Physical plant and facilities;
3. Fire protection and safety;
4. Food service;
5. Reports and records;
6. Staffing and personal service;
7. Surgical facilities and equipment;
8. Maternity facilities and equipment;
9. Control of communicable disease;
10. Sanitation;
11. Laboratory services;

12. Nursing facilities and equipment; and

13. Other items as may be deemed necessary to carry out the purposes of this article.

B. 1. The State Commissioner of Health, with the advice of the ~~Oklahoma Hospital Advisory Council~~ and the State Board of Pharmacy, shall promulgate rules and standards as the Commissioner deems to be in the public interest with respect to the storage and dispensing of drugs and medications for hospital patients.

2. The State Board of Pharmacy shall be empowered to inspect drug facilities in licensed hospitals and shall report violations of applicable statutes and rules to the State Department of Health for action and reply.

~~C. 1. The Commissioner shall appoint an Oklahoma Hospital Advisory Council to advise the Department regarding hospital operations and to recommend actions to improve patient care.~~

~~2. The Advisory Council shall have the duty and authority to:~~

~~a. review and approve in its advisory capacity rules and standards for hospital licensure,~~

~~b. evaluate, review and make recommendations regarding Department licensure activities; provided however, the Advisory Council shall not make recommendations regarding scope of practice for any health care providers or practitioners regulated pursuant to Title 59 of the Oklahoma Statutes, and~~

~~c. recommend and approve:~~

~~(1) quality indicators and data submission requirements for hospitals, and~~

~~(2) the indicators and data to be used by the Department to monitor compliance with licensure requirements.~~

~~D. 1. The Advisory Council shall be composed of nine (9) members appointed by the Commissioner. The membership of the Advisory Council shall be as follows:~~

- ~~a. two members shall be hospital administrators of licensed hospitals,~~
- ~~b. two members shall be licensed physicians or practitioners who have current privileges to provide services in hospitals,~~
- ~~c. two members shall be hospital employees, and~~
- ~~d. three members shall be citizens representing the public who:~~
 - ~~(1) are not hospital employees,~~
 - ~~(2) do not hold hospital staff appointments, and~~
 - ~~(3) are not members of hospital governing boards.~~

~~2. a. Advisory Council members shall be appointed for three-year terms except the initial terms after November 1, 1999, of one hospital administrator, one licensed physician or practitioner, one hospital employee, and one public member shall be one (1) year. The initial terms after the effective date of this act of one hospital administrator, one licensed physician or practitioner, one hospital employee, and one public member shall be two (2) years. The initial terms of all other members shall be three (3) years. After initial appointments to the Council, members shall be appointed to three year terms.~~

~~b. Members of the Advisory Council may be removed by the Commissioner for cause.~~

~~E. The Advisory Council shall meet on a quarterly basis and shall annually elect from among its members a chairperson. Members of the Council shall serve without compensation but shall be~~

~~reimbursed by the Department for travel expenses related to their service as authorized by the State Travel Reimbursement Act.~~

SECTION 4. This act shall become effective November 1, 2026.

Passed the Senate the 9th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____